جامعة خليفة
Khalifa University

SERVICES AGREEMENT

21 November, 2018

Khalifa University of Science and Technology

and

GOBI Library Solutions from EBSCO

جامعة خليفة
Khalifa University

THIS AGREEMENT is dated 15 August, 2018

BETWEEN:

(1) **Khalifa University of Science and Technology**, a government university organised under the laws of the emirate of Abu Dhabi, United Arab Emirates and whose principal address is P.O. Box 127788, Abu Dhabi, United Arab Emirates (**Khalifa University**); and

(2) **GOBI Library Solutions from EBSCO**, a specialist company providing library solutions and whose principal address is 999 Maple Street, Contoocook, NH 03229 USA (**Company**).

Khalifa University and the Company shall be referred to herein either individually as a **Party** or collectively as the **Parties**.

NOW, THEREFORE, it is agreed as follows:

1. INTERPRETATION

1.1 In this agreement:

Cap means the maximum value Khalifa University is willing to spend using this agreement with no commitment, during the term of this agreement. For avoidance of doubt, the value of the Cap does not constitute a commitment payable from Khalifa University to the Company unless a service is provided as part of this agreement within the cap amount. The Cap for this agreement shall be set to a maximum of 700,000 AED (seven Hundred Thousand United Arab Emirates Dirhams);

Commencement Date means 8 May, 2018;

Deliverables means the deliverables to be supplied by the Company to Khalifa University as part of the Services or as agreed between the Parties from time to time;

End Date means 31 December, 2019;

Fees means the fee or fees specified in this agreement in accordance to Appendix 1 payable by Khalifa University to the Comapny in respect of the Services;

Services means the services (including provision of the Deliverables) to be provided by the Company under this agreement including, without limitation, those identified in Appendix 1.

1.2 In this agreement references to a party to this agreement include references to the successors or assigns (immediate or otherwise) of that party.

1.3 Clauses 1.1 and 1.2 apply unless expressly defined or set out otherwise.

1.4 The headings in this agreement do not affect its interpretation.

1.5 The schedules and appendices to this agreement form part of it and any reference to "Clauses", "Schedules" or "Appendices" means a clause, schedule or appendix to this agreement respectively.

1.6 The words "includes" or "including" shall mean "including without limitation.

1.7 If there is any conflict or inconsistency between a term in the main part of this agreement and a term in any of the Schedules or Appendices or other documents referred to or otherwise incorporated into this agreement, the term in the main part of this agreement shall prevail to the extent of the conflict or inconsistency.

2. SERVICES

2.1 With effect from the Commencement Date, Khalifa University hereby appoints the Company to perform the Services and the Company hereby accepts the appointment to perform the Services in accordance with this agreement.

2.2 The Company shall devote to his obligations under this agreement his time, attention, skill and care as may be necessary for the proper performance of those obligations.

3. TERM

This agreement shall commence on the Commencement Date and shall continue until the end date, unless earlier terminated pursuant to this agreement or otherwise agreed by the Parties in writing, until completion of the Services to the reasonable satisfaction of Khalifa University.

4. TIME FOR PERFORMANCE

4.1 Any time for performance of the Services shall be as specified in Appendix 1 and time shall be of the essence. If no time for performance is specified for completion of the Services or any particular part of the Services, then the Comany shall perform such Services within a time to be agreed by the Parties, or, failing such agreement, within a reasonable time given the nature and extent of the Services.

4.2 The Company shall not be liable to Khalifa Unviersity for any delay in providing the Services caused either in whole or in part by any failure to act of Khalifa University nor for any delay caused either in whole or in part resulting from acts beyond the reasonable control of the Company, including acts of God, war, fire, flood, explosion, epidemics or civil commotion.

5. PAYMENT

5.1 In consideration for the Company performing the Services on the terms of this agreement, Khalifa University shall pay to the Company the Fees in accordance with the terms of

Appendix 1. Other than as expressly provided in Appendix 1, the Fees shall be inclusive of all charges, disbursements and taxes of any nature whatsoever.

5.2 If the total aggregate amounts paid or confirmed to the Company, against services provided by this agreement, exceed the Cap set to this agreement, Khalifa University shall have the right to not pay any amount above the cap value, unless an amendment is made to this agreement in accordance to Clause 8.

5.3 The Company shall be entitled to render invoices in accordance with Appendix 1 and payment of any sums due shall be made, subject to Clauses 5.2 and 5.4, and unless the Parties agree otherwise, within 60 days following the date of submission of the invoice; provided that an invoice shall be deemed to be properly rendered only once the Company has submitted all documents reasonably required by Khalifa University to support each invoice. All invoices and supporting documentation must be sent to the invoice address specified in Appendix 2.

5.4 If any part of the Fees is subject to a bona fide dispute between Khalifa University and the Company, the following provisions shall apply:

(a) Khalifa University shall pay to the Company, in accordance with Clause 5.3, all amounts not disputed in good faith by Khalifa University;

(b) Khalifa University shall notify the Company within 14 days after the date on which the invoices are received of any disputed items and shall describe in reasonable detail Khalifa University's reasons for disputing each item; and

(c) within seven days after the Company has received the notice referred to in clause 5.4(b), the Parties shall seek to reach settlement on the items that are the subject of the dispute.

5.5 The Fees specified in Appendix 1 may not be increased without the prior written consent of Khalifa University.

5.6 Khalifa University shall have the right to deduct from any monies due or which may become due to the Company, any monies or sums recoverable from the Company to Khalifa University in respect of any claims against the Company.

5.7 Payment by Khalifa University shall be without limitation to any claims or rights which Khalifa University may have against the Company and shall not constitute any acceptance by Khalifa University of the performance by the Company of its obligations hereunder.

6. TERMINATION

6.1 Khalifa University shall be entitled to terminate this agreement without cause at any time on giving the Company not less than seven days' prior written notice of termination.

6.2 Each Party shall have the right, without prejudice to its other rights or remedies, to terminate this agreement immediately by written notice to the other if the other Party is in

material breach of any of its obligations under this agreement and either that breach is incapable of remedy or the other Party shall have failed to remedy that breach within seven days after receiving written notice requiring it to remedy that breach.

6.3 If Khalifa University terminates this agreement pursuant to Clause 6.1 or if the Company terminates this agreement under Clause 6.2, Khalifa University shall pay the Company the proportion of the outstanding price payable for the Services as relates to the work properly and satisfactorily carried out or where the Services are charged on a time basis, for the time properly and necessarily spent on the Services prior to the effective date of termination and any fees for deliverables ordered by Khalifa University prior to termination but not yet delivered.

6.4 If Khalifa University exercises its rights of termination under Clause 6.2, it shall not be liable to the Company for any losses, claims, damages, fees, liabilities, costs or expenses suffered or incurred by the Company and resulting from such termination. In any event, under no circumstances shall Khalifa University be liable to the Company for any indirect or consequential loss (including loss of goodwill, loss of profit, loss of any contract, loss of opportunity, loss of anticipated profits or revenue or costs of capital) as a result of termination of this agreement.

6.5 Upon expiry or termination, as the case may be, of this agreement, the Company shall promptly deliver to Khalifa University, upon its request, all Project Materials, Confidential Information together with any books, papers, materials and other related property relating to the business of Khalifa University or relating to this agreement or the Services that are in the Company's possession or under the Company's control. No copies of the foregoing items may be retained by the Company for record purposes, except as required by law.

6.6 Any termination of this agreement (howsoever occasioned) shall not affect any accrued rights or liabilities of either Party, nor shall it affect the coming into force or the continuance in force of any provision of this agreement which is expressly or by implication intended to come into force or continue in force on or after termination.

7. NOTICES

7.1 Any notice or other document to be served under this agreement may be delivered or sent by post, email (with receipt confirmed) or facsimile to the Party to be served at its address set out in the preamble of this agreement or in Appendix 2 or as otherwise agreed between the Parties.

7.2 When providing service of a notice or document it shall be sufficient to prove that delivery was made or that the envelope containing the notice or document was properly addressed

and posted or that the facsimile message or e-mail was properly addressed and despatched (as the case may be).

8. Amendments

Any amendment of this agreement shall not be binding on the Parties unless set out in writing, expressed to amend this agreement and signed by each of the Parties.

9. Severability

If any term of this agreement is or becomes illegal, invalid or unenforceable in any jurisdiction, that shall not affect:

(a) the legality, validity or enforceability in that jurisdiction of any other term of this agreement; or

(b) the legality, validity or enforceability in other jurisdictions of that or any other provision of this agreement.

10. Further assurance

Each Party undertakes, at the request and cost and expense of the other Party, to sign all documents and to do all other acts, which may be necessary to give full effect to this agreement.

11. Costs

Each Party shall pay the costs and expenses incurred by it in connection with the entering into of this agreement.

12. Language

(a) Any notice given in connection with this agreement must be in English.

(b) Any other document provided in connection with this agreement must be:

(i) in English; or

(ii) (unless the Parties otherwise agree) accompanied by a certified English translation, in which case, the English translation prevails unless the document is a statutory or other official document.

13. Third Party Rights

Except as expressly stated herein, a person who is not a party to this agreement may not enforce any of its terms.

14. Whole Agreement

14.1 This agreement, the documents referred to in it and any agreements relating to this agreement entered into on the date of this agreement between the Parties contain the whole agreement between the Parties relating to the transactions contemplated by this agreement and supersede all previous agreements between the Parties relating to those transactions.

14.2 Subject to Clause 14.3, each Party acknowledges that in entering into this agreement it has not relied on any representation, warranty, collateral contract or other assurance (except those set out in this agreement and the documents referred to in it) made by or on behalf of any other Party before the date of this agreement. Each Party waives all rights and remedies which, but for this Clause 14.2, might otherwise be available to it in respect of any such representation, warranty, collateral contract or other assurance.

14.3 Nothing in Clause 14.2 limits or excludes any liability for fraud.

15. GOVERNING LAW AND ARBITRATION

15.1 This agreement and the relationship between the Parties shall be governed by, and construed in accordance with, the laws of the United Arab Emirates as applicable in the Emirate of Abu Dhabi.

15.2 Any dispute or difference of any kind between the Parties in connection with or arising out of this agreement or the breach, termination or validity hereof (a **Dispute**) shall be finally settled in accordance with the rules promulgated by the Abu Dhabi Commercial Conciliation and Arbitration Centre (the **Rules**). Notwithstanding the foregoing, either Party may seek injunctive relief in any court of competent jurisdiction against improper use or disclosure of Confidential Information. It is hereby agreed that:

(a) the seat of the arbitration shall be the city of Abu Dhabi;

(b) there shall be three arbitrators, each Party selecting one arbitrator within 15 days after the claimant commences the arbitration by giving written notice of the arbitration and the third (and presiding) arbitrator selected by the two arbitrators so selected within 30 days after their appointment. If the two arbitrators cannot agree on the third arbitrator within such 30 day period, the third arbitrator shall be appointed in accordance with the Rules;

(c) the language of the arbitration shall be English;

(d) the award shall be in writing and shall set forth in reasonable detail the facts of the Dispute and the reasons for the tribunal's decision; and

(e) the award in such arbitration shall be final and binding upon the Parties and judgment thereon may be entered in any court having jurisdiction for its enforcement.

جامعة خليفة
Khalifa University

IN WITNESS WHEROF, the Parties have caused their duly authorised representatives to execute and deliver this Agreement on the date first above written.

For and on behalf of **Khalifa University of Science and Technology** by:

Name: Dr. Arif Al Hammadi
Title: Executive Vice President

جامعة خليفة
Khalifa University
Procurement & Contracts Dept.

For and on behalf of **GOBI Library Solutions from EBSCO** by:

Name: Darby Kopp
Title: Chief Operating Officer

GOBI Library Solutions from EBSCO
999 Maple Street
Contoocook, NH 03229 USA

جامعة خليفة
Khalifa University

Appendix 1

GOBI LIBRARY SOLUTIONS FROM EBSCO

SERVICE LEVEL AGREEMENT

GOBI®
Library Solutions from EBSCO

Service Level Agreement

Between

GOBI Library Solutions from EBSCO

And

KHALIFA UNIVERSITY OF SCIENCE AND TECHNOLOGY

Date: 15 August 2018

999 Maple Street, Contoocook, NH 03229 USA tel: +1 603-746-3102 https://gobi.ebsco.com

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Library Solutions from EBSCO

1. SCOPE

This SLA covers the supply of library books in print and electronic format to Khalifa University of Science and Technology. The purpose of this document is to facilitate the administrative procedure and regulate the terms of supply between Khalifa University of Science and Technology and GOBI Library Solutions.

2. TERMS OF SUPPLY

GOBI Library Solutions will offer Khalifa University of Science and Technology the following pricing terms:

Discount Schedule and Pricing Terms

Discounts are applied to publisher's list price at the time of shipment to the library.

Description	Pricing/Discount	Exceptions
Firm Orders (supplied from GOBI Library Solutions-US or UK)	20.5%	• *Associations Pricing* list (service fee) • Books *directly imported* by us (service fee) • *List Price Publisher* list (normally sold at list price; occasional service fee for short publisher discount) • *All above* exceptions • Any other title where we receive a *short publisher discount* (service fee) • eBooks are exempt from regular discounts
Approval or Notification Slip Plan (supplied from GOBI Library Solutions-US or UK)	20.5%	
Continuations (supplied from GOBI Library Solutions-US or UK)	10.5%	
eBooks*	0%	• eBooks are sold at publisher list price and do not receive a discount. • GOBI Library Solutions does not set hosting or platform fees. Any fees are billed directly by the publisher or aggregator themselves. • Whenever possible, we will match publisher discount offerings corresponding to

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		specially discounted packages, deeply discounted print books in combination with ebooks, and the like. • A signed license agreement may be required by specific ebook publishers or aggregators before a library order can be filled. This agreement will spell out any contract or hosting fees charged by the eSupplier.
GOBI®	Our online database GOBI® offers free access to a long list of core features. Additional features are available on an annual subscription basis, based on library size. We offer a subscription to all available features for a single annual fee; or you can purchase annually any single package or combination of packages from among GobiPlus, GoBeyond and/or GOBI Reviews.	GOBI Library Solutions is pleased to offer GobiPlus and GoBeyond at no charge. An annual subscription for GOBI Reviews is offered at $570.00.
Technical Services	Technical Services pricing is reviewed annually. Any changes in record or processing fees are announced early in the year and implemented in July.	Please refer to the Technical Services Price List provided to Khalifa University of Science and Technology. A Technical Specification will also be provided which will outline the services the University has specified.

Service Fee:

When GOBI Library Solutions does not receive our expected discount from any publisher, we add a **15% service fee to the publisher's list price.** Service fees exist to offset standard operations and processing fees typically covered by publishers' discounts to GOBI Library Solutions.

15%, $10 minimum, $25 maximum (UK minimum/maximum are based on Sterling and are subject to currency fluctuation at time of invoice when not invoiced in GBP,15%, £6 minimum, £16 maximum), where applicable, per exceptions identified above. The UK service fee applies when books are

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purchased on the UK Firm order or UK Continuations ordering account and GOBI Library Solutions did not receive our expected discount from the publisher. Please note that we will invoice in USD on UK subaccounts if requested by the University.

eBooks:

GOBI Library Solutions is able to supply online-only versions for reference materials and subscription renewals of book series on a title-by-title basis in addition to more than 2,000,000 ebook titles through our partnerships with EBSCO and ProQuest (eBook Central), and/or direct from publishers. eBook titles are sold without a service fee or discount. Please refer to the list of "*GOBI eBook Suppliers for the Middle East*" which will be supplied as an addendum to this agreement.

More than 85,000 ebooks are now available Digital Rights Management (DRM)-free on the EBSCO eBooks platform with additional titles being added throughout the year. Now, librarians can choose from limited rights models or the DRM-free model based on their needs and budget for qualifying ebooks. DRM-Free EBSCO eBooks can be opened with Adobe Acrobat or any software that supports PDF or EPUB files, and there are no restrictions on printing, saving, or copying.

Shipping:

Khalifa University will be charged the actual shipping costs for monthly regular shipping from the US distribution center. Shipping from the UK distribution center will be free of charge.

Out of Print Services: A designated subaccount will be created for Out of Print book ordering. Standard book orders will not be handled through the Out of Print service unless ordered on a designated Out of Print subaccount.

Service Type	*Pricing/Fee*
via OP Choice	Alibris list price plus 15% service fee
via BookZone	Alibris list price less 5% discount and plus 15% service fee

Technical Services:
Technical Services pricing is reviewed annually. Any changes in record or processing fees are announced early in the year and implemented in July. Binding charges are subject to review with limited notice and reflect changes in vendor pricing to us.

Returns:
GOBI Library Solutions routinely accepts the return of any book within 120 days of the invoice date with the following exceptions:

- Books listed as non-returnable on your invoice
- Serial standing orders
- Books provided with processing (e.g., jackets, polyester jacket covers, bindings, stamps, spine labels), whether provided by GOBI Library Solutions, another processor or the library
- Books ordered through our out-of-print service
- eBooks

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Books selected from title notification slips have the same return status as automatic books. Khalifa University will be notified in advance of any titles that are classified as non-returnable. Incorrectly supplied items should also be reported to your Customer Service Representative within 45 days of invoice and before return. All returns should be accompanied with a copy of the invoice and the reason for the return. Our complete Returns Policy is available on our web site at: https://gobi.ebsco.com/returns.

Payment Terms:

Net 60 days from the date of the invoice. Invoices that are more than 30 days past due will incur a finance charge of 1% per month. Payments made within 90 days of the date of the invoice will not incur a finance charge.

GOBI Library Solutions accepts the following methods of payment for the services offered under this pricing structure: payment by check, money order, electronic funds transfer (EFT) or by debit from a deposit account. Any other method of payment will be considered a change to the pricing terms and require renegotiation of terms and conditions.

Delivery – Print and eBooks:

Approximate delivery times for *in stock* and *available* print books from the UK and US:

UK sourced books	Under 15 days
US sourced books	Under 30 days

Supply of eBooks

EBSCO and IGI ebooks are accessible within one hour of purchase. All other ebooks purchased through GOBI Library Solutions will become available to the library within 48 hours.

GOBI Library Solutions provides automated (emailed) Notification of Access (NOA) for ebooks purchased via your GOBI Library Solutions ebook subaccounts(s). NOAs are delivered via email and include in the Subject Line: the name of the eBook Supplier, Customer Account Number, and Customer Name. For each ebook ordered, GOBI Library Solutions will include the title, ISBN and URL.

Shortly after the ebook Notification of Access is provided, the ebook is invoiced regardless of the chosen ship cycle for the account. Ship cycle does not influence when the ebook is invoiced. A deposit account can be established with GOBI Library Solutions so that as each ebook is ordered and invoiced, the cost of the ebook will be debited against the deposit account.

Our ebook records conform to the Program for Cooperative Cataloging (PCC) standards, contain site-specific URLs, and can be customized to meet various bibliographic and local data requirements.

GOBI Library Solutions supplies ebook MARC records which are loaded to the library's ILS and are then available to the discovery layer.

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3. ORDERING PROCESS/CUSTOMER SERVICE

GOBI Library Solutions' Customer Service Representatives partner with you and your staff to provide outstanding support to address and resolve your day-to-day needs. We are your primary resource for any issue you encounter, and we hold ourselves to high standards of responsiveness and performance in order to exceed your expectations. We are your advocate, your project manager, and your solution architect.

Khalifa University's Customer Service Representative, Rachel Jones, is there to help with the University's daily needs. She is your one point of contact for print and ebook, and she can accept orders, answer questions, provide modifications to your profile, and may assist you with custom management reports which can be run online on GOBI at any time. She can also resolve any problems with orders, deliveries, claims, renewals, invoices or credits that may arise. Our standard is to acknowledge and resolve any query within 24 – 48 hours of receipt. In practice, we respond much more quickly. Our Customer Service Representatives have a reputation for taking whatever steps are necessary to ensure customer satisfaction.

Complicated matters or questions that lead outside of GOBI Library Solutions, often to publishers, may require more time for us to resolve, but the University staff will always understand the reason for any delayed answer and will feel assured that GOBI Library Solutions is working to deliver an answer as soon as possible.

Orders can be placed directly in GOBI or via email. Ordering is currently set up for Khalifa University of Science and Technology to order in Koha and then receive Electronic Order Confirmation Records (EOCR). An EOCR Subscription will be provided at no cost for the first year of the agreement and will be reviewed after that to determine the best course for the University.

Khalifa University should inform their Customer Service Representative as soon as possible regarding any orders (for print or ebooks) which need to be changed, cancelled or returned. Please note that ebooks can be cancelled if the title has not yet been published. If an ebook is ordered by mistake, it is important that the library contact their Customer Service Representative immediately so we can attempt to stop the order or to work on a resolution with our contacts at the eSupplier.

An update on the status of any open order can be obtained by consulting GOBI or upon request to your Customer Service Representative, Rachel Jones. If requested, GOBI Library Solutions will also provide automatic status reports by email every 15 or 30 days depending on the frequency required.

Local data, such as the requestor's name, can be entered in the local data field upon order entry and is displayed in the MARC record's local data 961 subfield.

4. DELIVERIES

Deliveries will be made by courier from GOBI Library Solutions to the Abu Dhabi Airport. Each parcel will be traceable and will require a signature for confirmation of delivery.

Parcels will be delivered to the following addresses depending on instructions provided at the time of ordering:

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KHALIFA UNIVERSITY OF SCIENCE AND TECHNOLOGY
SAS AL NAKHAL Campus
HABSHAN BLDG – LIBRARIES
SAS AL NAKHAL, PO BOX 2533
ABU DHABI, UAE

5. APPROVAL PLAN

An Approval Slip plan can be set up based on a bibliographic profile written and maintained by GOBI Library Solutions in close collaboration with Khalifa University of Science and Technology library staff. GOBI Library Solutions is committed to regularly reviewing and refining the University's bibliographic profile to better suit the requirements of the library.

In addition, a Standing Order (Continuations) service can be set up for the University. GOBI Library Solutions accepts continuations orders any time during the year. We will work closely with the library staff to establish Standing Orders through us that will meet the needs of the University. These orders can begin at any point in the series and can include both forthcoming volumes and any previously published volumes which may be required. If the desired series is not found in the GOBI database, contact your GOBI Library Solutions Customer Service Representative, Rachel Jones, for availability on standing order.

6. CONTACTS

GOBI Library Solutions commits to maintaining excellent staff knowledge in the individual products and services that the institution takes from GOBI Library Solutions in order to handle Khalifa University of Science and Technology's account efficiently.

Customer Service Representative:
Rachel Jones
Email: racheljones@ybp.com

Sales Manager: Ali Abdallah
Email: aabdallah@ebsco.com

Technical Support:
Wendy Evans
Email: wendyevans@ebsco.com

Financial Contact:
Winniefer Ferrell
Email: wferrell@ebsco.com

Regional Account Executive:
Leina Barsoum
lbarsoum@ebsco.com

جامعة خليفة
Khalifa University

Appendix 2

Khalifa University Contacts

Khalifa University Library Contacts

Dr. Abdulla Al Hefeiti
abdulla.alhefeiti@ku.ac.ae

Alia Al Harrasi
alia.alharrasi@ku.ac.ae

Rani Anand
rani.anand@ku.ac.ae

Khalifa University Finance Department Contacts

KU Accounts Payable
accountspayable@ku.ac.ae

Khalifa University Procurement and Contracts Department

Contracts Section
dept.contracts@ku.ac.ae

Mohammad Adnan Khalil
mohammad.khalil@ku.ac.ae

Shareena Al Muwaijei
shareena.almuwaijei@ku.ac.ae